



CHAPTER clxxii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Greenock Corporation. A.D. 1904.
—
[15th August 1904.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Greenock Corporation Order Confirmation Act 1904. Short title.

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S C H E D U L E.

GREENOCK CORPORATION.

Provisional Order authorising the Abandonment of an Authorised and the Construction of a New Street by the Provost Magistrates and Councillors of the Burgh of Greenock the Construction of a Branch Railway within the said Burgh by the Glasgow and South Western Railway Company and for other purposes.

WHEREAS the Burgh of Greenock in the County of Renfrew (in this Order called "the burgh") is under the government for municipal purposes of the provost magistrates and councillors thereof (in this Order called "the Corporation"):

And whereas under the Greenock Police Act 1877 the control and management of the streets and roads within the burgh are vested in and exercised by the Corporation as the successors of the Board of Police of Greenock:

And whereas it is expedient that the Corporation should be empowered to make and maintain within the burgh the new street herein-after described to acquire lands for the purposes thereof to stop up portion of Ropework Street and to abandon the construction of the new street authorised by the Greenock Corporation Order 1901 (in this Order called "the Order of 1901"):

And whereas the powers of the Order of 1901 both with respect to the purchase of lands and the borrowing of money for defraying the cost of the new street by the said Order authorised to be constructed have not been exercised:

And whereas the construction within the burgh of the short branch railway herein-after described from the railway at the Albert Harbour of the Trustees of the Port and Harbours of Greenock (in this Order called "the harbour trustees") to Harvie Lane will be of public and local advantage:

And whereas the Glasgow and South Western Railway Company (in this Order called "the Company") work over the said railway of the harbour trustees:

And whereas the Corporation have agreed with the Company for the construction by and at the expense of the Company of the

said branch railway and it is expedient that the Company be empowered to construct the same : A.D. 1904.

And whereas it is expedient that the Corporation should be authorised to borrow further moneys for the purposes herein-after mentioned and of this Order :

And whereas plans and sections showing the lines situations and levels of the new street and branch railway by this Order authorised and also a book of reference to such plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Renfrew and are herein-after respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Greenock Corporation Order 1904 and shall come into operation at the date of the passing of the Act confirming the same which date is herein-after referred to as “the commencement of this Order.” Short title
and com-
mencement.

2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 except section 40 thereof Part I. of the Railways Clauses Act 1863 except sections 5 to 8 thereof and Part II. of the Tramways Act 1870 are so far as they are applicable for the purposes of and are not expressly varied by this Order incorporated with and form part of this Order Provided that the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the construction of the railway and works connected therewith the temporary occupation of lands near the railway during the construction thereof the crossing of roads or other interference therewith and works for the accommodation of lands adjoining the railway and of the Railways Clauses Act 1863 herewith incorporated shall apply only to such portions of the railway by this Order authorised as are not to be laid along the carriageway of any road and that the Incorporation of
Acts.

A.D. 1904. — provisions of Part II. of the Tramways Act 1870 also herewith incorporated shall not apply to such portions of the said railway but only to so much thereof as is to be laid along the carriageway of any road and that for the words "eighteen inches" in section 28 of the last-mentioned Act appearing the words "twenty-four inches" shall be substituted and that in the Acts incorporated with this Order the expression "the Promoters" and other like expressions mean the Corporation or the Company as the case may require.

Interpreta-
tion.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And the expressions "the new street" and "the railway" mean respectively the new street and the railway by this Order authorised.

Power to
Corporation
to make new
street.

4. Subject to the provisions of this Order the Corporation may make and maintain in the lines and according to the levels shown upon the deposited plans and sections the new street herein-after described or some part or parts thereof with all proper works and conveniences connected therewith and may enter upon take and use such of the lands and buildings delineated on the said plans and described in the deposited book of reference as they may require for that purpose (that is to say) :—

A new street not less than 26 feet in width wholly situate within the burgh being an alteration and extension of Nicolson Street commencing at a point in Nicolson Street 45 yards or thereabouts west from the centre line of Nicolson Street at its junction with Ropework Street and terminating in Laird Street at or near the western corner of the old West Kirk burial ground.

Vesting of
new street.

5. The new street shall after the completion thereof be and become vested in the Corporation.

Power to
stop up
portion of
Ropework
Street.

6. The Corporation may on the completion of the new street stop up and discontinue as a public street or thoroughfare so much of Ropework Street as is situate between its junction with Nicolson Street and its junction with Laird Street and the site and soil of that street when stopped up and discontinued shall be and the same are hereby vested in the Corporation freed

and discharged from the public use thereof and all rights of way over the same shall cease : A.D. 1904.

Nothing in this Order shall take away prejudice or extend any existing rights of any company or person in respect of any mains or pipes situate in the aforesaid portion of Ropework Street as they exist at the commencement of this Order.

7. Subject to the provisions of this Order and within the limits defined on the deposited plans the Corporation in connexion with the new street and for the purposes thereof may make junctions and communications with any existing streets which may be intersected by or interfered with or be contiguous to the said work and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said work or otherwise.

Power to
make sub-
sidiary
works.

8. For the purposes and during the execution of the new street and in maintaining the same the Corporation may use break up or cross over or under alter divert raise or stop up temporarily any streets roads lanes paths passages sewers drains watercourses gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such street or the flow of water gas sewage or electricity in any such sewer drain pipe or apparatus and making full compensation to all persons injuriously affected by the exercise of the powers of this section Provided that nothing in this section shall extend to or authorise any interference with electric apparatus or other property of His Majesty's Postmaster-General :

Power to
divert and
alter sewers
&c.

Provided further that nothing in this section shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to which the provisions of section 15 of the first of the said Acts apply except in accordance with and subject to the provisions of that section.

9. The Corporation may cause such parts of the new street to be laid out and formed for carriageways and such parts thereof for foot passengers as they may think fit and may construct erect and provide thereon or thereunder or connected

Corporation
to form
sewers
drains &c.

A.D. 1904. therewith such sewers drains and other works and conveniences as they may think proper.

Limits of lateral and vertical deviation.

10. In the construction of the new street the Corporation may deviate laterally to any extent not exceeding the limits of deviation defined on the deposited plans and they may deviate from the levels shown on the deposited sections to any extent not exceeding two feet.

Abandonment of construction of street authorised by Order of 1901.

11. Part II. of the Order of 1901 is hereby repealed and the Corporation shall abandon the construction of the street authorised by and described in section 7 thereof.

Power to make railway.

12. Subject to the provisions of this Order the Company may make work and maintain in the line and according to the levels shown on the deposited plans and sections relating thereto and within the limits of deviation delineated on such plans the railway herein-after described with all proper sidings passing places loops works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose and may for the like purpose enter upon open break up and interfere with the streets and roads on which the same is intended to be laid The railway herein-before referred to and authorised by this Order will be situate in the parish and burgh of Greenock in the county of Renfrew and is—

A railway 2 furlongs and 3·21 chains or thereabouts in length single line commencing by a junction with the railway at Albert Harbour of the Harbour Trustees at a point 50 yards or thereabouts north-west from the south-west corner of Ropework Street and its junction with Laird Street passing thence along Laird Street the new street Nicolson Street and across Ropework Street to and along Dalrymple Street and terminating in that street at the junction therewith of Harvie Lane.

Owners may be required to sell parts only of certain lands and buildings.

13. And whereas in the construction of the new street and the railway or otherwise in exercise of the powers of this Order it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act

1845 the owners of and other persons interested in the houses or other buildings or manufactories described in the schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Corporation or the Company as the case may be the portions only of the premises so required without the Corporation or the Company as the case may be being obliged or compellable to purchase the whole or any greater portion thereof the Corporation or the Company as the case may be paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

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14. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation or the Company as the case may be after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to the sheriff of Renfrew and Bute for the correction thereof and if it appears to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk for the county of Renfrew and a duplicate thereof shall also be deposited with the town clerk of the burgh and such certificate and duplicate respectively shall be kept by such principal sheriff clerk and town clerk with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation or the Company as the case may be to take the lands and execute the works in accordance with such certificate.

Correction
of errors &c.
in deposited
plans and
book of
reference.

15. The powers of the Corporation and the Company respectively for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Period for
compulsory
purchase of
lands.

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Restriction
on taking
houses of
labouring
class.

16. The Corporation or the Company shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Corporation or the Company acquire or appropriate any house or houses for the purposes of this Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Persons
under dis-
ability may
grant servi-
tudes &c.

17. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation or the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rent-charges feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Railway to
be kept on
level of sur-
face of road.

18. If and whenever after the commencement of this Order the Corporation alter the level of any street or road along or

across which the railway is laid or authorised to be laid the Company may and shall alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the street or road as altered. A.D. 1904.
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19.—(1) In addition to the requirements of section 26 of the Tramways Act 1870 the Company shall at the same time as they give notice to the Corporation of their intention to open or break up any street or road for the purpose of constructing laying down and renewing the railway lay before the Board of Trade and the Corporation a plan showing the proposed mode of constructing laying down and renewing the same and a statement of the materials intended to be used therein and the Company shall not commence the construction laying down and renewal of the railway or part of the railway except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and the Corporation and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the master of works of the Corporation. Plan of proposed mode of construction.

(2) If any dispute shall arise between the Company and the Corporation or the said master of works under this section such dispute shall unless otherwise agreed be determined by an arbiter to be nominated on the application of either party by the sheriff of Renfrew and Bute.

20. The railway shall be constructed on a gauge of four feet eight and a half inches and the Company may use thereon engines wagons and trucks adapted for use on main line railways. Gauge of railway.

21. The rails of the railway where laid in any street or road shall be such as the Board of Trade may approve. As to rails of railway.

22. The railway shall not be opened for traffic until it has been inspected and certified to be fit for traffic by the Board of Trade. Inspection by Board of Trade.

23.—(1) The Company shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the railway where laid in any street or road and the substructure upon which the same rest and if the Company at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 as modified by this Order they shall be subject to Penalty for not maintaining rails and roads.

A.D. 1904. a penalty not exceeding five pounds and a daily penalty not exceeding five pounds.

(2) In case it is represented in writing to the Board of Trade by the Corporation or by twenty inhabitant ratepayers of the burgh that the Company have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 as modified by this Order the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Company to such penalty or penalties in respect thereof as is or are by this section imposed.

Stoppage of
roads during
execution of
works.

24. Subject to the provisions of this Order the Company may during the execution of the works with the consent in writing of the Corporation stop up temporarily the carriageway or footway of any street or road as they think necessary and for that purpose may put up bars posts and other erections Provided that the Company shall before stopping up any footway under this section provide a temporary substitute therefor.

Corporation
to have
access to
sewers.

25. The Corporation shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Company and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the Corporation as if the same were a pipe for the supply of gas or water.

Application
of road
materials
excavated in
construction
of works.

26. Any paving metalling or material excavated by the Company in the construction of the railway or works from any street or road may be applied by the Company so far as may be necessary in or towards the reinstating of the street or road and the maintenance for six months after completion of the railway of so much of the roadway on either side of the railway as the Company are by section 28 of the Tramways Act 1870 as modified by this Order required to maintain and the Company shall if so required deliver the surplus paving metalling or material not

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used or required to be retained for the purposes aforesaid to the master of works of the Corporation or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such master of works or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Company and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Company and the Corporation or master of works or other person with reference to any of the matters aforesaid shall unless otherwise agreed be settled by an arbiter to be nominated by the sheriff of Renfrew and Bute on the application of either party.

27. Notwithstanding anything in this Order contained the Company shall not acquire or be deemed to acquire any right other than that of user of any street or road on which they lay the railway.

Right of
user only by
Company of
streets or
roads.

28. Nothing in this Order or in any byelaw made under this Order shall take away or abridge the right of the public to pass along or across every part of any street or road on which the railway is laid except as herein-after expressly provided with reference to engines wagons and trucks having flange wheels or wheels suitable only to run on the rails of the railway.

Reservation
of right of
public to use
roads.

29. Nothing in this Order shall take away or affect any power of the Corporation to widen alter divert repair maintain or improve any street or road. Provided that such powers shall not be exercised so as to interfere with or affect the railway or the traffic thereon further or otherwise than may be necessary and that nothing in this Order shall entitle the Company to compensation for any loss or damage sustained by them by reason of the reasonable exercise of such powers as aforesaid.

Reservation
of powers to
widen roads
&c.

30. The railway shall not be used for the purpose of conveying passengers but only for the conveyance thereon of animals minerals and merchandise and no engines wagons or trucks shall be run thereon on any Sunday.

Traffic on
railway.

31. The railway shall for the purposes of tolls rates and charges and for all other purposes form part of the authorised railways and undertaking of the Company.

Railway to
form part of
authorised
undertaking
of Company.

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Company to
have exclu-
sive use of
railway.

32. The Company shall have the exclusive use of the railway for engines wagons and trucks with flange wheels or other wheels suitable only to run on the rails of the railway. If any person (except by agreement with the Company) uses the railway with carriages having flange wheels or other wheels suitable only to run on the rails of the railway such person shall for every such offence be liable to a penalty not exceeding twenty pounds.

As to re-
moval of
snow &c.

33. If the Company at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the railway where laid on any street or road the Company shall at their own expense remove the snow or other matter to the side of the street or road but so as not to impede or obstruct the ordinary traffic on the street or road and the Company shall not use any unsuitable material for thawing the snow on any street or road. Provided that any dirt or other matter removed by the Company from the grooves of the rails of the railway shall not be allowed to remain on the street or road but shall be at once taken away by the Company.

Saving for
power to re-
gulate traffic
on roads.

34. Nothing in this Order shall limit the powers of the Corporation or of the police to regulate the passage of any traffic along or across any street or road on which the railway is laid and the Corporation or police may exercise their authority as well on as off the railway and with respect as well to the traffic of the Company as to the traffic of other persons.

Power to
Corporation
to make
byelaws.

35. The Corporation may make byelaws as to the following matters:—

The rate of speed to be observed in travelling upon the part of the railway on any street or road ;

Prescribing the maximum number of wagons or trucks which may be drawn or propelled by any engine on the railway as one train ;

The distances at which engines or trains using such part of the railway shall be allowed to follow one after the other ;

The stopping of trains using such part of the railway ;

The traffic on the street or road on which such part of the railway is laid ;

For regulating the hours for the conduct on such part of the railway of any traffic ;

The conditions under which heavy goods may be loaded on and unloaded off the railway on any street or road on which such part of the railway is laid.

No such byelaw shall have any force or effect until it has been allowed by the Board of Trade. A.D. 1904.

If the Company shall feel aggrieved by the provisions of any such byelaw they may appeal against the same to the Board of Trade who shall have power if they think fit to cancel or modify the same or to make such new byelaw in lieu thereof as they may consider expedient.

Any such byelaw may impose reasonable penalties for offences against the same not exceeding five pounds for each offence with or without further penalties for continuing offences not exceeding for any continuing offence five pounds for every day during which the offence continues after conviction thereof but all such byelaws shall be so framed as to allow in every case part only of the maximum penalty being ordered to be paid.

36. If the new street and the railway are not completed within five years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Corporation and the Company for executing the same respectively or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of works.

37. The Company may apply to or towards the purposes of this Order to be fulfilled by them and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts or Orders or which they may be authorised to raise by the Glasgow and South Western Railway Order 1904 and which are not required for the purposes to which they are by those Acts or Orders made specially applicable. Power to Company to apply authorised capital to purposes of Order.

38. If the Company fail within the period limited by this Order to complete the railway the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the railway and the said penalty may be applied for by the Corporation or any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Order and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 and every sum of money recovered by way of Penalty imposed unless railway opened within limited time.

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Application
of penalty.

39. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property may have been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or any portion thereof or who may have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Order and also in compensating the Corporation for the expense incurred by them in making good all damage caused to any street or road by the construction or abandonment of the railway and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit and if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company is insolvent or the railway or any part thereof has been abandoned be paid or transferred to such judicial factor or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

For protec-
tion of har-
bour trustees.

40.—(1) The traffic passing to or from the railway over the railways of the harbour trustees shall be worked by the Com-

pany in accordance with the regulations made or to be made by the harbour trustees Provided that any new regulations to be made by the harbour trustees shall be approved of by the sheriff of the county in terms of the Harbours Docks and Piers Clauses Act 1847.

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(2) Notwithstanding anything shown on the deposited plans and described in the deposited book of reference the Company or the Corporation shall not under the powers of this Order acquire from the harbour trustees except with their consent under seal a greater portion of their lands than fifteen square yards at the south-east corner of the stores of the harbour trustees at Clarence Street The compensation to be made to the harbour trustees by the Company or the Corporation in respect of the taking of such portion shall be one hundred pounds.

(3) The harbour trustees shall notwithstanding the construction of the railway or anything in this Order contained have at all times free access to and power to lay drains communicating with their existing mains pipes and drains.

41. For the protection of Caird and Company Limited ship-builders Greenock (in this section called "the limited company") the following provisions with respect to the railway shall unless otherwise agreed between the Company and the limited company and the Corporation have effect (that is to say) :—

For protection of
Caird and
Company
Limited.

(1) Notwithstanding anything delineated on the deposited plans or described in the deposited book of reference the Company shall not purchase and take the lands numbered 21 in the parish of Greenock on the said plans but may acquire a servitude in perpetuity over the said lands for the purpose of constructing working and maintaining the railway thereon and the provisions of the Lands Clauses Acts shall apply to such servitude as if the same were included in the word "lands" in those Acts :

(2) The traffic on the railway where it passes over the said lands shall be worked so as not to interfere unnecessarily with the free use and enjoyment by the limited company or their successors of the lands on either side of the railway and subject to such regulations for the protection of such free use and enjoyment and the exclusion of trespassers from such lands as may be

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agreed upon between the Company and the limited company or in the event of difference determined by an arbiter to be appointed (failing agreement) on the application of either party by the Board of Trade :

- (3) The limited company shall acquire by agreement and convey to the Corporation such portion of the lands numbered 11A 12 13 14 15 16 17 18 and 19A in the parish of Greenock on the deposited plans as may be necessary for the construction of the new street between Nicolson Street and Laird Street :
- (4) The Corporation shall make over and convey to the limited company the site and solum of so much of Ropework Street as is by this Order authorised to be stopped up and the limited company shall on the delivery of the conveyance to them pay to the Corporation the sum of five hundred and fifty pounds to be applied by the Corporation in the relief over a period of five years of the police assessment leviable by the Corporation under the Greenock Police Act 1877.

For protec-
tion of Hugh
McPhail
Watson and
others.

42. For the protection of (1) Hugh McPhail Watson (2) Jessie Christie Melville or McQueen widow Thomas Aitcheson and John Lamont junior accepting trustees of the deceased Donald Wilson McQueen Elizabeth McQueen Dorcas McQueen or Pattison Flora McQueen or Ferguson (3) Hugh Ritchie (4) John Chalmers and John Scott the only surviving trustees of the late William Montgomerie and (5) Matthew Scott junior and their respective heirs successors and assignees (all of whom are in this section included in the expression "the proprietors") as proprietors of the tenements of dwelling-houses in the burgh numbered 22 26 and 28 in Dalrymple Street and 1 3 5 and 7 in Nicolson Street (herein-after in this section referred to as "the said properties") the following provisions shall unless otherwise agreed between the proprietors and the Company have effect (that is to say) :—

- (1) If any of the said properties shall be injuriously affected by reason of the construction or working of the railway the Company shall notwithstanding that no part of the property so affected is taken by the Company make compensation for such injury to the proprietor or proprietors thereof and the amount of

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such compensation shall failing agreement be finally determined as herein-after provided. Provided that the arbiter herein-after mentioned shall not as against the Company award any compensation for injury by working to be paid by the Company unless the claim was made within three years from the date of the opening for traffic of the railway :

- (2) Any claim by any of the said proprietors against the Company for compensation under this section shall be referred to and finally determined with or without a formal reference by some one person to be agreed upon in writing between the proprietor or proprietors making such claim and the Company or failing agreement by some one person to be appointed on the application of either party by the sheriff of Renfrew and Bute.

43. For the protection of the Brewers' Sugar Company Limited and the Cereals Company Limited and their successors in title and lessees and occupiers respectively (in this section referred to as "the two companies") the following provisions shall have effect unless otherwise agreed upon between the two companies and the Corporation and the Company (that is to say) :—

For protection of
Brewers'
Sugar Com-
pany Limited
and Cereals
Company
Limited.

- (1) In the construction maintenance and use of the railway the existing levels of Dalrymple Street shall not be altered or interfered with. The rails shall be laid so that the uppermost surface thereof shall be on a level with the surface of the street and the space between the rails shall be causewayed so as to present a uniform surface throughout the street. The Company shall not in the construction maintenance and use of the railway in any way interfere with the accesses from Dalrymple Street Charles Street and Sugar-house Lane to the properties of the two companies or (except in so far as may be reasonably necessary for the purposes of such construction maintenance and use) with the continuous and uninterrupted carrying on of their traffic by means of the said streets. The two companies shall at all times with the permission of the Corporation in writing have free access to and communication with all sewers drains and pipes

A.D. 1904.

(including fresh and salt water gas and steam pipes) belonging to them or either of them and power to lay lateral or private pipes or drains to communicate therewith without the consent or concurrence of the Company and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer pipe or private drain of or under the control or in the use of the two companies or either of them as if the same were a pipe for the supply of gas or water :

(2) The Corporation shall forthwith make over and convey to the Brewers' Sugar Company Limited free of charge, the site and solum of the portion of West Burn Square delineated and coloured blue on the plan (herein-after referred to as "the agreed plan") dated the twenty-sixth day of April one thousand nine hundred and four and signed in triplicate by Alexander Jamieson Turnbull on behalf of the Corporation and by John S. Wingate secretary of and on behalf of the Brewers' Sugar Company Limited one copy of which plan (signed by Eugene Wason Esquire Chairman of the Commission to whom this Order was referred) has been deposited with the Secretary for Scotland :

(3) The Company shall before commencing the construction of the portion of the railway situated between the north end of Dalrymple Street and Charles Street give one month's notice in writing to the two companies of their intention to construct the same and shall notwithstanding anything shown on the deposited plans and sections if required by the two companies (within one month after the receipt of such notice) by notice in writing construct the said portion of the railway and also a siding on the western side thereof in the position delineated on and in complete accordance with the plan dated the twenty-ninth day of April one thousand nine hundred and four and signed in quadruplicate by Alexander Jamieson Turnbull on behalf of the Company and the Corporation and by said John S. Wingate on behalf of the two companies one copy of which plan (signed by Eugene Wason

Esquire Chairman of the Commission to whom this Order was referred) has also been deposited with the Secretary for Scotland : A.D. 1904.

- (4) The Brewers' Sugar Company Limited shall forthwith after the delivery to the Company of the notice last mentioned make over and convey to the Corporation free of charge the lands coloured red on the agreed plan and also within seven years from the commencement of this Order the lands coloured yellow thereon and shall take down and remove from such lands at their own cost all buildings which it may be necessary to take down and remove for the purpose of constructing the siding and enabling the Company to work and use the same and of widening and improving Sugar-house Lane on the north side and West Burn Square on the east side and the said lands shall be dedicated and used in all time coming for street purposes but the Brewers' Sugar Company Limited shall thereafter be freed from all liability for the cost of the existing street or foot pavement and of any street or foot pavement which may hereafter be made in the said lands :
- (5) The two companies shall have the use of the said siding between the hours of six in the morning and four in the afternoon of every day during which they are under the provisions of this section entitled to unload wagons thereat and may stand wagons and trucks on any part thereof and the Company shall not except with the consent of the two companies have the use of said siding during said hours but the two companies shall not in the use of the said siding allow any wagon to remain thereon between Sugar-house Lane and Charles Street for a longer period at one time than half an hour No engine wagon or truck shall be moved on the said siding during the meal hours of the employees of Caird and Company Limited :
- (6) The two companies or either of them may unload any wagon at the said siding between the hours of six in the morning and four in the afternoon of every week day except Saturday and on Saturdays only

A.D. 1904.

between the hours of six in the morning and twelve noon but the said siding shall not without the consent of the Corporation in writing be used for the loading or unloading of any wagon or truck on any Sunday or public holiday or after the above specified hours on Saturdays :

- (7) The Company shall bring forward to and remove from the said siding the traffic of the two companies with due expedition and despatch :
- (8) It shall be lawful for the two companies to make a connection with the said siding by rails laid upon their own property and to load or unload off such rails any wagon Provided always that they shall not except with the consent of the Corporation be entitled to do so over any public street except by means of a gangway placed above said street to the satisfaction of the Corporation :
- (9) Any difference between the two companies the Company and the Corporation or any of them under this section shall be referred to and determined with or without a formal reference by an arbiter to be mutually chosen or failing agreement appointed on the application of any of the parties by the sheriff of Renfrew and Bute.

Policing of
railway.

44. — (1) The Company shall on the fifteenth day of May in each year after the opening of the railway pay to the Corporation the sum of seventy-five pounds in respect of the services of such constables not exceeding two in number as may be required by the Company for regulating the traffic on the streets and roads in which the railway is laid between the hours of six in the morning and twelve midnight and such further sum as may be agreed upon between the Company and the Corporation or in the event of difference be determined by an arbiter to be appointed (failing agreement) on the application of either party by the Board of Trade for the services of any constable or constables required by the Company for the regulation of such traffic between the hours of twelve midnight and six in the morning.

(2) During the construction of the railway and the works connected therewith the master of works or engineer appointed for that purpose by the Corporation shall at all times have the right of access to and of inspecting the same.

45. Nothing in this Order contained shall exempt the Company or the railway from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

A.D. 1904.

Provision as
to general
Railway
Acts.

46.—(1) The Corporation may from time to time borrow at interest—

Power to
borrow.

- (A) For the repayment of moneys already borrowed by the Corporation in respect of the Municipal Buildings the Town Hall Palmerston Buildings East Quay Cellars the Fish Market and the properties numbered 40 in Rue End Street 3 5 and 7 in Jamaica Street 2 in Bank Street 32 in Dalrymple Street and 5 in Bogle Street any sum not exceeding one hundred and twenty thousand pounds :

The Corporation may also from time to time (in addition to any moneys which they are now authorised to borrow) borrow at interest for the following purposes the sums following or any part thereof (that is to say) :—

- (B) For the cemetery as defined in the Greenock Corporation Act 1893 any sum not exceeding five thousand six hundred pounds :
- (c) For defraying the cost of the new street any sum not exceeding five thousand pounds :
- (D) Such further sum as may be necessary for defraying the costs of this Order.

(2) The borrowing by the Corporation under this section shall be on the terms and subject to the restrictions in reference to borrowings by the Board of Police of Greenock contained in Part IX. of the Greenock Corporation Act 1893.

(3) Any moneys borrowed under this section for the purposes mentioned in (A) shall be repaid within sixty years from one thousand eight hundred and ninety-three in (B) and (c) within thirty years from the commencement of this Order and in (D) within five years from the commencement of this Order.

(4) Subsection (1) of section 87 of the Order of 1901 in so far as it authorises the Corporation to borrow the sum of six

A D. 1904. — thousand pounds for defraying the cost of the new street by that Order authorised is hereby repealed.

Costs of
Order.

47. All costs charges and expenses of and incident to the preparing for obtaining making and confirmation of this Order or otherwise in relation thereto shall be paid by the Corporation out of any funds rates or revenues belonging to them or under their control or out of moneys borrowed for that purpose under this Order.

The SCHEDULE referred to in the foregoing Order.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN.

Parish.	Numbers on deposited Plans.
NEW STREET.	
Greenock - - -	11A 12 13 14 15 16 17 18 19A.
RAILWAY.	
Greenock - - -	9 11A 12 13 14 15 16 17 18 21 23 24 25 26.

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